



Notification Waiver Determination

Sumitomo Mitsui Trust Bank – SMTB ANZ Debt Fund

Acquisition	Sumitomo Mitsui Trust Bank, Limited (SMTB) applied for a notification waiver in respect of its proposed acquisition of 100% of the units in the IFM SuMi TRUST ANZ Debt Fund (the Trust), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	16 July 2026

Parties to the Acquisition	The acquirer, SMTB, is a Japanese-based provider of financial services. In Australia, SMTB provides commercial lending services, including general corporate loans, fund financing, and property finance. SMTB's commercial lending services are mainly conducted through offshore booking transactions by SMTB's Singapore Branch. SMTB also provides 'trust banking services' to Australia-based customers, which are a combination of traditional banking functions and fiduciary services, with a particular focus on fee-based business such as asset management and trust administration, often serving long-term institutional clients. The target, the Trust, is a 'fund-of-one' trust that has been established for the purpose of facilitating lending and credit investment by SMTB in Australia and New Zealand, with a focus on private debt, bank loans, and specialty finance opportunities. The Trust will not carry out any lending prior to completion of the Acquisition. The trustee of the Trust is Eticore SD Pty Ltd, and the investment manager is IFM Investors Pty Ltd. Both entities are domiciled in Australia and are an independent corporate trustee and investment manager, respectively. SMTB proposes to make a commitment into the Trust in exchange for 100% of the units in the Trust. Post-acquisition, SMTB will be the only unitholder in the Trust, and will use the Trust to provide loans and credit investment in Australia and New Zealand.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act).

	Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. the target has been established for the sole purpose of facilitating lending and credit investment by SMTB in Australia and New Zealand, and as such the Acquisition does not result in any horizontal consolidation or the removal of a competitor b. there are alternative suppliers of commercial lending services in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**